PREPARED BY VOLADO LABS FOR INNOVIVE

What our cookie banner costs

We are applying Europe's consent standard to every visitor, including the 81 percent who are in the United States. Here is what that is worth in measurement, and what the alternatives are.

For Jamie, Robin, and outside counsel **Date** 8 September 2026 **Decision needed** Yes, from counsel

What is in place today

Innovive's website uses CookieYes to ask every visitor for permission before any tracking runs. Until a visitor clicks accept, Google Analytics does not load, HubSpot's visitor tracking does not load, and no non-essential cookie is set. We verified that behavior directly and reported it to counsel earlier this year.

This is the strictest setting available, and it was the right place to start. It guarantees compliance everywhere without needing to know which rules apply where. Nothing below suggests it was a mistake.

What it costs

Because analytics only runs after someone accepts, visitors who decline or ignore the banner are invisible to us. We can measure the size of that gap, because Google Search Console counts clicks on Google's own servers before a visitor ever reaches our site, and consent has no effect on it.

August 2026, Google organic only. Search Console counted 1,217 clicks; Google Analytics recorded 749 sessions from Google. The two count different things, a click versus a visit, so part of that difference is normal and would exist even with no banner at all. Consent is the largest controllable part of it, not the whole of it.

Up to four in ten visits do not appear in any report we produce. We cannot put an exact figure on the consent share specifically, because a click and a visit are not the same unit, and our cookie tool reports the true accept and decline rates directly if we ever need the precise number. Either way the gap applies to the whole dashboard, not just search: the monthly totals, the channel mix, and the source of every lead that arrives through a form.

The practical effect is that when a lead comes in from someone who declined the banner, we cannot say where they came from. The lead is real and sales still receives it. We simply cannot tell you whether it was worth the spend that produced it.

Where the visitors actually are

81%	**6%**	**13%**
United States	**Europe and the UK**	**Everywhere else**
1,122 of 1,386 sessions in August	France, UK, Germany, Ireland, Netherlands	Canada, Asia, and a long tail

This is the part worth a decision. The opt-in requirement we are applying to everyone comes from European law, and Europe is currently about six percent of our traffic. The other ninety four percent are being held to a standard their own laws do not impose.

The distinction, as we understand it. European rules (GDPR) genuinely require asking permission before analytics runs. California's rules (CCPA and CPRA) work differently: they require clear notice and an easy way to opt out, along with honoring browser privacy signals, but they do not require asking permission first for analytics. **We are not lawyers and this needs counsel's confirmation.** We are flagging it because it is the difference between the current setting and the alternatives below.

The three options

IN PLACE TODAY

Ask everyone, everywhere

Maximum caution, and defensible in any jurisdiction. Costs us visibility on a large share of visits. LinkedIn conversion tracking went live on 8 September under the same rule, so LinkedIn will only ever credit campaigns for visitors who accept advertising cookies, and its reported conversion numbers will read low against reality for the same reason.

OUR RECOMMENDATION

Ask by region

European and UK visitors keep the current opt-in banner. US visitors get clear notice and a working opt-out instead, which is what California law asks for. CookieYes already supports this; it is a configuration change, not a new tool or a new vendor.

This would recover most of the missing measurement, because the missing visits are overwhelmingly American.

ALTERNATIVE

Leave it and report the gap

Keep the current setting and state the limitation openly in every report, so nobody reads a number as complete when it is not. This is what we are doing now, and it remains a perfectly reasonable answer if counsel prefers the conservative position.

What we are asking for

Only a decision on whether the recommendation above is acceptable, and that decision belongs to counsel rather than to marketing. If the answer is no, we will keep the current configuration and continue to label the gap in reporting. Either answer is workable. What does not work is not knowing which one we are operating under.

Two things are worth deciding alongside it: the California "Do Not Sell or Share" control that counsel raised earlier, and the privacy policy update that is still pending, since the banner links to it.

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Figures from Google Search Console and Google Analytics property 544618753, August 2026. GA4 figure is the google / organic source-medium pair, not the wider Organic Search channel, so it is comparable to Search Console’s Google-only clicks.

Legal characterizations are our plain-language understanding and require confirmation by Innovive's counsel.